

TENTATIVE RULINGS for LAW and MOTION

March 19, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Accardi et al. v. Accardi**
Case No. CV2025-0939
Hearing Date: **March 19, 2026** **Department Eleven** **9:00 a.m.**

The Court declines to consider new arguments or facts raised, or evidence submitted, by plaintiffs Filippa Ferrando and Vito Accardi in their reply brief. New arguments may not be raised for the first time in a reply brief. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited].)

Thus, because there was no evidence submitted with the moving papers in support of the costs allegedly incurred by plaintiffs' counsel in this action, plaintiffs' motion for distribution of funds after partition is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 873.820, 874.010.)

Prior to refilling this motion, the Court encourages the parties to meet and confer over both parties' claimed costs, with a particular focus on the holding in *Orien v. Lutz* (2017) 16 Cal.App.5th 957, 966 [“...counsel fees may be allowed ... for services rendered for the common benefit even in contested partition suits.”]. (See Code Civ. Proc., § 872.140.)

The notice of motion provides notice of this Court's tentative ruling system; however, the notice does not contain the requisite language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2021). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Jaime v. Ford Motor Company et al.**
Case No. CV2024-3266

Hearing Date: **March 19, 2026** **Department Fourteen** **9:00 a.m.**

The Court **DENIES** plaintiff Renae Jaime's request to continue the hearing on defendant Ford Motor Company's motion for summary judgment, or alternatively, summary adjudication because plaintiff failed to submit affidavits supporting that facts essential to justify an opposition may exist but could not be presented. (Code Civ. Proc., § 437c, subd. (h).)

The Court declines to consider plaintiff's late-filed opposition or any documents submitted in support thereof. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers."].)

The Court declines to rule upon defendant's evidentiary objections made within its responses and objections to plaintiff's separate statement in opposition to Ford's motion because "[a]ll written objections to evidence must be served and filed separately from the other papers...in opposition to the motion." (Cal. Rules of Court, rule 3.1354(b).)

The Court declines to rule on defendant's evidentiary objections to plaintiff's evidence as the evidence objected to is not germane to the disposition of defendant's motion. (Code Civ. Proc., § 437c, subd. (q).)

The Court rules on defendant's motion for summary adjudication as follows:

- Defendant's motion as to Issue 1 is **GRANTED**. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2).) The Court finds that defendant has met its initial burden to show that plaintiff failed to present the subject vehicle for repair during the express warranty period and there was never more than one repair made to any aspect of said vehicle. (Civ. Code 1793.2, subds. (a)(3), (d)(2); *Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 830 [the general rule is that an express warranty does not cover repairs made after the applicable time or mileage periods have elapsed]; *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208 ["The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle."]; see *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101.) Further, plaintiff has not met her burden to show a triable issue of material fact as to this Issue. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, 862: UMFs 1, 5 – 24.)
- Defendant's motion as to Issue 2 is **GRANTED**. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2).) The Court finds that defendant has met its initial burden to show that plaintiff failed to present the subject vehicle for repair during the one-year implied warranty period. (Civ. Code, 1791.1; UMFs 1, 5 – 24.) Further, plaintiff has not met her burden to show a triable issue of material fact as to this Issue. (*Aguilar, supra*, 25 Cal.4th 826, at pp. 862.)

- Defendant's motion as to Issue 3 is **GRANTED**. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2).) The Court finds that defendant has met its initial burden to show that plaintiff does not possess nor can she obtain evidence to prove all the essential elements of her fifth cause of action for fraudulent inducement-concealment. (*Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 775; see *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 946 [the issues on summary judgment are framed by the pleadings]); *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 580 – 593 [a moving defendant may rely on factually devoid discovery responses to meet the burden of proof on summary judgment and shift the burden to the plaintiff to show a triable issue of material fact]; UMFs 3, 4, 25 – 34; Compl., ¶¶ 58 – 64.) Further, plaintiff has not met her burden to show a triable issue of material fact as to this Issue. (*Aguilar, supra*, 25 Cal.4th 826, at pp. 862.)

Based on the Court's rulings above, defendant's motion for summary judgment is **GRANTED**. (Code Civ. Proc., § 437c, subds. (c), (p)(2); *Aguilar, supra*, 25 Cal.4th at p. 843.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Mota v. City of West Sacramento et al.**
Case No. CV2025-1324

Hearing Date: **March 19, 2026** **Department Fourteen** **9:00 a.m.**

Defendants City of West Sacramento, County of Yolo, Davison Joshua Graydon, and Brenden Michael McTighe’s (collectively, “defendants”) request for judicial notice is **GRANTED**. (Code Civ. Proc., §§ 452, subd. (d), 453.)

Defendants’ motion to consolidate case CV2025-1324 with case CV2025-2776 for all purposes is **GRANTED**. (Code Civ. Proc., § 1048, subd. (a).) The Court finds that Case Nos. CV2025-1324 and CV2025-2776 involve common questions of fact. (*Ibid.*) The Court finds that consolidating these actions will promote judicial efficiency, avoid the unnecessary duplication of evidence, and avoid any danger of inconsistent adjudications. (See *Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978–979; see also *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1148, fn. 12.)

Case number CV2025-1324 shall be the lead case.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Stark et al v. City of West Sacramento et al.**
 Case No. CV2025-2776

Hearing Date: **March 19, 2026** **Department Fourteen** **9:00 a.m.**

On defendants City of West Sacramento, County of Yolo, Davison Joshua Graydon, and Brenden Michael McTighe's motion for order of consolidation of cases, please refer to the tentative ruling in Case No. CV2025-1324. (See Cal. Rules of Court, rule 3.350(a), (b).)

TENTATIVE RULING

Case: **Vorhees v. Elfen**
 Case No. CV2024-2427

Hearing Date: **March 19, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff James Vorhees unopposed motion to set aside void default and default judgment for defendant is **DENIED**. (Code Civ. Proc., § 473, subd. (d).)

Plaintiff failed to file with the Court a proof of service of this motion on defendant Kristie Lynn Elfen. (Cal. Rules of Court, rule 3.1300(c) [“Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.”].) Furthermore, there is no default or default judgment entered against plaintiff in this action; thus, plaintiff fails to provide any legal authority upon which the Court may grant the relief requested. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.